PLATFORMS

TRAINING ACADEMY

INSTRUCTOR

CHARLES YOUNG

430 ILCS 65
Firearm
Owners
Identification
Card Act

Firearm Owner's Identification Card Requirements

No person may acquire or possess any firearm, stun gun, or taser within this State without having in his or her possession a Firearm Owner's Identification Card previously issued in his or her name by the Department of State Police under the provisions of this Act.

No person may acquire or possess firearm ammunition within this State without having in his or her possession a Firearm Owner's Identification Card previously issued in his or her name by the Department of State Police under the provisions of this Act.

No person may knowingly transfer, or cause to be transferred, any firearm, firearm ammunition, stun gun, or taser to any person within this State unless the transferee with whom he deals displays either:

-a currently valid Firearm Owner's Identification Card which has previously been issued in his or her name by the Department of State Police under the provisions of this Act; or

-a currently valid license to carry a concealed firearm which has previously been issued in his or her name by the Department of State Police under the Firearm Concealed Carry Act

Each applicant for a Firearm Owner's Identification Card must submit evidence to the Department of State Police that:

-He or she is 21 years of age or over...

or if he or she is under 21 years of age that he or she has the written consent of his or her parent or legal guardian to possess and acquire firearms and firearm ammunition and that he or she has never been convicted of a misdemeanor other than a traffic offense or adjudged delinquent, provided, however, that such parent or legal guardian is not an individual prohibited from having a Firearm Owner's Identification Card

-He or she has not been convicted of a felony under the laws of this or any other jurisdiction
-He or she is not addicted to narcotics
-He or she has not been a patient in a mental health facility within the past 5 years or, if he or she has been a patient in a mental health facility more than 5 years ago submit the certification

-He or she is not a person with an intellectual disability

-He or she is not an alien who is unlawfully present in the United States under the laws of the United States

-He or she is not subject to an existing order of protection prohibiting him or her from possessing a firearm

-He or she has not been convicted within the past 5 years of battery, assault, aggravated assault, violation of an order of protection, or a substantially similar offense in another jurisdiction, in which a firearm was used or possessed

-He or she has not been convicted of domestic battery, aggravated domestic battery, or a substantially similar offense in another jurisdiction

Revocation of Firearm Owner's Identification Card.

Every person whose application for a Firearm Owner's Identification Card is denied, and every holder of such a Card whose Card is revoked or seized, shall receive a written notice from the Department of State Police stating specifically the grounds upon which his application has been denied or upon which his Identification Card has been revoked.

A person who receives a revocation notice shall, within 48 hours of receiving notice of the revocation:

-surrender his or her Firearm Owner's Identification Card to the local law enforcement agency where the person resides and complete a Firearm Disposition Record on a form prescribed by the Department of State Police and place his or her firearms in the location or with the person reported in the Firearm Disposition Record.

If the person whose Firearm Owner's Identification Card has been revoked fails to comply with the requirements of this Section, the sheriff or law enforcement agency where the person resides may petition the circuit court to issue a warrant to search for and seize the Firearm Owner's Identification Card and firearms in the possession or under the custody or control of the person whose Firearm Owner's Identification Card has been revoked.

The observation of a Firearm Owner's Identification Card in the possession of a person whose Firearm Owner's Identification Card has been revoked constitutes a sufficient basis for the arrest of that person for violation of this Section

430 ILCS 66
Firearm Concealed Carry Act.

Issuance of Licenses to Carry a Concealed Firearm

The Department shall issue a license to carry a concealed firearm under this Act to an applicant who:

-is at least 21 years of age..

-has a currently valid Firearm Owner's Identification Card

-has not been convicted or found guilty in this State or in any other state of:

-a misdemeanor involving the use or threat of physical force or violence to any person within the 5 years preceding the date of the license application or...

-2 or more violations related to driving while under the influence of alcohol, other drug or drugs, intoxicating compound or compounds, or any combination thereof, within the 5 years preceding the date of the license application

-is not the subject of a pending arrest warrant, prosecution, or proceeding for an offense or action that could lead to disqualification to own or possess a firearm

-has not been in residential or court-ordered treatment for alcoholism, alcohol detoxification, or drug treatment within the 5 years immediately preceding the date of the license application

and...

-has completed firearms training and any education component required

-has submitted the requisite fees and does not pose a danger to himself, herself, or others, or a threat to public safety as determined by the Concealed Carry Licensing Review Board

A license shall be valid throughout the State for a period of 5 years from the date of issuance. A license shall permit the licensee to:

-carry a loaded or unloaded concealed firearm, fully concealed or partially concealed, on or about his or her person and keep or carry a loaded or unloaded concealed firearm on or about his or her person within a vehicle

A licensee shall possess a license at all times the licensee carries a concealed firearm except:

-when the licensee is carrying or possessing a concealed firearm on his or her land or in his or her abode, legal dwelling, or fixed place of business, or on the land or in the legal dwelling of another person as an invitee with that person's permission or...

-when the person is authorized to carry a firearm under Section 24-2 of the Criminal Code of 2012

-when the handgun is broken down in a non-functioning state, is not immediately accessible, or is unloaded and enclosed in a case

If an officer of a law enforcement agency initiates an investigative stop, including but not limited to a traffic stop, of a licensee or a non-resident carrying a concealed firearm, upon the request of the officer, the licensee or non-resident shall disclose to the officer that he or she is in possession of a concealed firearm under this Act, or present the license upon the request of the officer if he or she is a licensee or present upon the request of the officer evidence that he or she is a non-resident qualified to carry.

Upon the request of the officer, the licensee or non-resident shall also identify the location of the concealed firearm and permit the officer to safely secure the firearm for the duration of the investigative stop.

During a traffic stop, any passenger within the vehicle who is a licensee or a non-resident carrying must comply with the requirements of this subsection.

If a licensee carrying a firearm or a non-resident carrying a firearm in a vehicle is contacted by a law enforcement officer or emergency services personnel, the law enforcement officer or emergency services personnel may secure the firearm or direct that it be secured during the duration of the contact if the law enforcement officer or emergency services personnel determines that it is necessary for the safety of any person present including the law enforcement officer or emergency services personnel.

The licensee or nonresident shall submit to the order to secure the firearm.

When the law enforcement officer or emergency services personnel have determined that the licensee or non-resident is not a threat to the safety of any person present, including the law enforcement officer or emergency services personnel, and if the licensee or non-resident is physically and mentally capable of possessing the firearm, the law enforcement officer or emergency services personnel shall return the firearm to the licensee or non-resident before releasing him or her from the scene and breaking contact.

If the licensee or non-resident is transported for treatment to another location, the firearm shall be turned over to any peace officer. The peace officer shall provide a receipt which includes the make, model, caliber, and serial number of the firearm.

License Renewal

Applications for renewal of a license shall be made to the Department. A license shall be renewed for a period of 5 years upon receipt of a completed renewal application, completion of 3 hours of training, payment of the applicable renewal fee, and completion of an investigation

A licensee shall notify the Department within 30 days of moving or changing residence or any change of name. The licensee shall submit the requisite fee and the Department may require a notarized statement that the licensee has changed his or her residence or his or her name, including the prior and current address or name and the date the applicant moved or changed his or her name.

A licensee shall notify the Department within 10 days of discovering that a license has been lost, destroyed, or stolen. A lost, destroyed, or stolen license is invalid.

PROHIBITED AREAS

Any building, real property, and parking area under the control of a/an:

- **public or private elementary or secondary school**
- **pre-school or child care facility**
- **officer of the executive or legislative branch of government**

- circuit court, appellate court, or the Supreme Court
- unit of local government
- adult or juvenile detention or correctional institution, prison, or jail
- public or private hospital or hospital affiliate, mental health facility, or nursing home
- public transportation

Any public gathering or special event conducted on property open to the public that requires the issuance of a permit from the unit of local government, provided this prohibition shall not apply to a licensee who must walk through a public gathering in order to access his or her residence, place of business, or vehicle

Any building or real property that has been issued a Special Event Retailer's license as defined in Section 1-3.17.1 of the Liquor Control Act during the time designated for the sale of alcohol by the Special Event Retailer's license, or a Special use permit license as defined in subsection (q) of Section 5-1 of the Liquor Control Act during the time designated for the sale of alcohol by the Special use permit license.

- Any public playground
- Any public park, athletic area, or athletic facility under the control of a municipality or park district, provided nothing in this Section shall prohibit a licensee from carrying a concealed firearm while on a trail or bikeway if only a portion of the trail or bikeway includes a public park

- Cook County Forest Preserve District
- public or private community college, college, or university
- gaming facility licensed under the Riverboat Gambling Act or the Illinois Horse Racing Act of 1975, including an inter-track wagering location licensee
- collegiate or professional sporting event

- **Public Library**
- **Airport**
- **Amusement Park**
- **Zoo or Museum**
- **Bars**

Any street, driveway, parking area, property, building, or facility, owned, leased, controlled, or used by a nuclear energy, storage, weapons, or development site or facility regulated by the Federal Nuclear Regulatory Commission. The licensee shall not under any circumstance store a firearm or ammunition in his or her vehicle or in a compartment or container within a vehicle located anywhere in or on the street, driveway, parking area, property, building, or facility described in this paragraph.

- **Any area where firearms are prohibited under federal law**

The owner of private real property of any type may prohibit the carrying of concealed firearms on the property under his or her control. The owner must post a sign in accordance with subsection (d) of this Section indicating that firearms are prohibited on the property, unless the property is a private residence.



Any licensee prohibited from carrying a concealed firearm into the parking area of a prohibited location shall be permitted to carry a concealed firearm on or about his or her person within a vehicle into the parking area and may store a firearm or ammunition concealed in a case within a locked vehicle or locked container out of plain view within the vehicle in the parking area.

A licensee may carry a concealed firearm in the immediate area surrounding his or her vehicle within a prohibited parking lot area only for the limited purpose of storing or retrieving a firearm within the vehicle's trunk.

For purposes of this subsection, "case" includes a glove compartment or console that completely encloses the concealed firearm or ammunition, the trunk of the vehicle, or a firearm carrying box, shipping box, or other container

A licensee shall not be in violation of this Section while he or she is traveling along a public right of way that touches or crosses any of the premises if the concealed firearm is carried on his or her person in accordance with the provisions of this Act or is being transported in a vehicle by the licensee in accordance with all other applicable provisions of law.

A license shall be suspended if an order of protection, including an emergency order of protection, plenary order of protection, or interim order of protection under Article 112A of the Code of Criminal Procedure of 1963 or under the Illinois Domestic Violence Act of 1986, is issued against a licensee for the duration of the order, or if the Department is made aware of a similar order issued against the licensee in any other jurisdiction.

A licensee shall not carry a concealed firearm while under the influence of alcohol, other drug or drugs, intoxicating compound or combination of compounds, or any combination thereof, under the standards set forth in subsection (a) of Section 11-501 of the Illinois Vehicle Code

A licensee whose license is revoked, suspended, or denied shall, within 48 hours of receiving notice of the revocation, suspension, or denial, surrender his or her concealed carry license to the local law enforcement agency where the person resides

720 ILCS 5
Criminal Code of 2012

“Aggressor”

a person who is attempting to commit, committing, or escaping after the commission of, a forcible felony or initially provokes the use of force against himself, with the intent to use such force as an excuse to inflict bodily harm upon the assailant or otherwise initially provokes the use of force against himself, unless…

such force is so great that he reasonably believes that he is in imminent danger of death or great bodily harm, and that he has exhausted every reasonable means to escape such danger other than the use of force which is likely to cause death or great bodily harm to the assailant; or, in good faith, he withdraws from physical contact with the assailant and indicates clearly to the assailant that he desires to withdraw and terminate the use of force, but the assailant continues or resumes the use of force

Use of Force in Defense of Person

A person is justified in the use of force against another when and to the extent that he reasonably believes that such conduct is necessary to defend himself or another against such other's imminent use of unlawful force.

However, he is justified in the use of force which is intended or likely to cause death or great bodily harm only if he reasonably believes that such force is necessary to prevent imminent death or great bodily harm to himself or another, or the commission of a forcible felony

"Forcible Felony"

Means treason, first degree murder, second degree murder, predatory criminal sexual assault of a child, aggravated criminal sexual assault, criminal sexual assault, robbery, burglary, residential burglary, aggravated arson, arson, aggravated kidnapping, kidnapping, aggravated battery resulting in great bodily harm or permanent disability or disfigurement and any other felony which involves the use or threat of physical force or violence against any individual.

Use of Force in Defense of Dwelling

A person is justified in the use of force against another when and to the extent that he reasonably believes that such conduct is necessary to prevent or terminate such other's unlawful entry into or attack upon a dwelling

However, he is justified in the use of force which is intended or likely to cause death or great bodily harm only if the entry is made or attempted in a violent, riotous, or tumultuous manner, AND he reasonably believes that such force is necessary to prevent an assault upon, or offer of personal violence to, him or another then in the dwelling, or he reasonably believes that such force is necessary to prevent the commission of a felony in the dwelling.

"Dwelling“

Except as otherwise provided, "dwelling" means a building or portion thereof, a tent, a vehicle, or other enclosed space which is used or intended for use as a human habitation, home or residence.

Use of Force in Defense of Other Property

A person is justified in the use of force against another when and to the extent that he reasonably believes that such conduct is necessary to prevent or terminate such other's trespass on or other tortious or criminal interference with either real property (other than a dwelling) or personal property, lawfully in his possession or in the possession of another who is a member of his immediate family or household or of a person whose property he has a legal duty to protect.

However, he is justified in the use of force which is intended or likely to cause death or great bodily harm only if he reasonably believes that such force is necessary to prevent the commission of a forcible felony


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